

EXPUNGEMENT OBJECTION TRANSMITTAL

COUNTY OF _____

THE STATE OF SOUTH CAROLINA

Race _____ Sex _____ Age _____

DOB _____ SSN _____

vs.

SID _____

participant/case info review zone

Charges were disposed of in the court indicated below:

Defendant _____

☐ Magistrate ☐ Municipal

AKA _____

The summary court has initiated, on the defendant's behalf, an Order of Expungement to have all records relating to this offense expunged and destroyed and/or sealed pursuant to South Carolina Code of Laws, Sections 17-22-950 and 17-1-40.

Warrant/Ticket/ _____ Date of _____ Place of _____
Courtesy Summons _____ Arrest/Service _____ Arrest/Service _____ County, S.C.

Warrant/Ticket/ _____ Date of _____ Place of _____
Courtesy Summons _____ Arrest/Service _____ Arrest/Service _____ County, S.C.

Arrest Charge(s) _____

☐ The defendant was found not guilty on _____.

☐ The charge(s) listed above were dismissed on _____.

☐ The charge(s) listed above were *nolle prossed* on _____.

☐ The defendant was charged pursuant to Section 34-11-90, made restitution, and paid the administrative fee to the County resulting in a dismissal on _____.

_____ (name) of _____ (organization) filed a written objection (copy attached) to the expungement of this record based on the following statutory basis:

☐ The accused person has other charges pending or

☐ The prosecuting agency or the appropriate law enforcement agency believes that the charges are not eligible for expungement.

South Carolina Code of Laws Section 17-22-950(F) requires that in the event an objection is filed, the court of General Sessions must determine whether to allow the record to be expunged. I provide the following documentation to the Circuit Court for a determination as to whether the charge(s) should be expunged.

Signed this _____ day of _____, 20____.

Summary Court Judge

Judge Code

ORDER OF THE CIRCUIT COURT JUDGE

A hearing was held in the above-referenced matter on the _____ day of _____, 20____. Present at the time of the hearing were _____. Based on the testimony, evidence, and record in this case, this court finds the following: _____.

☐ The above listed offense(s) shall be expunged by the summary court.

☐ The above listed offense(s) shall not be expunged.

signature/date review zone

Date: _____ 20____

Circuit Court Judge

Judge Code